

HOUSE BILL 16

By Clemmons

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 49; Title 54 and Title 55, relative to pedestrian
safety.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 54, Chapter 4, is amended by adding
the following as a new part:

54-4-701.

The department of transportation shall establish and administer a student
pedestrian protection grant program. The purpose of the program is to provide grants to
local governments to be used solely for designing, constructing, and repairing or
replacing sidewalk infrastructure around public schools in this state.

54-4-702.

(a) There is created a separate fund within the general fund to be known as the
student pedestrian protection grant fund. The fund is composed of:

- (1) Funds appropriated by the general assembly for the fund; and
- (2) Gifts, grants, and other donations received by the department for the
fund.

(b) Subject to the availability of funds, the department shall allocate and disperse
grants each fiscal year to local governments. The grants must be awarded on a
competitive basis. The commissioner shall propose the annual recurring budget of the
program and shall establish the selection criteria for awarding grants. Funds must not
be obligated or expended under the program unless the local government agrees to
match the proposed expenditures in an amount established by the commissioner. The

commissioner shall determine whether all, or a portion, of the required match may be provided by in-kind project work approved by the commissioner.

(c) Moneys in the fund must be invested by the state treasurer for the benefit of the fund in accordance with § 9-4-603. Interest accruing on investments and deposits of the fund must be returned to the fund and remain part of the fund. Any unencumbered moneys and any unexpended balance of the fund remaining at the end of a fiscal year do not revert to the general fund, but must be carried forward until expended in accordance with this section.

54-4-703.

The commissioner may promulgate rules to effectuate this part in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

54-4-704.

Each recipient of student pedestrian protection grant funds shall provide a quarterly report to the department detailing the progress on use of the funds and a final report once all of the grant funds have been expended. On or before October 1 in any year during which the department has allocated and dispersed funds pursuant to this part, the department of transportation shall prepare a report to the general assembly regarding the funds received and payments made by the fund.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.